

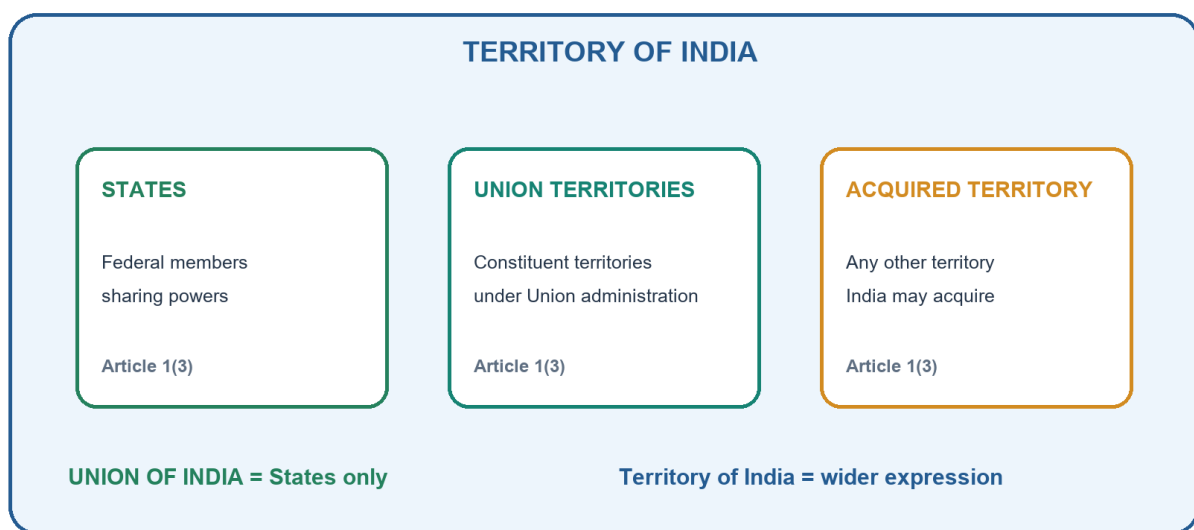
SOLVED PRACTICE WORKBOOK

Union and Territory

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

POLITY 05 | UNION AND TERRITORY

The territorial architecture of India



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Union and Territory - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

Forty core diagnostic MCQs

Core MCQ 1. Article 1(1) primarily settles which two issues together?

- A. The country's name and the type of polity
- B. The capital city and the official language
- C. The citizenship rules and the anthem
- D. The emergency powers and amendment process

Answer: A. Article 1(1) gives both the name - India, that is Bharat - and the formula 'Union of States'.

Core MCQ 2. Which statement best captures the difference between the Union of India and the Territory of India?

- A. The Union of India includes only Parliament, while the Territory of India includes Parliament and the States
- B. The Union of India refers to the States as federal members, while the Territory of India also includes Union Territories and acquired territories
- C. The Union of India means the Union executive, while the Territory of India means the Union judiciary
- D. The two expressions are exact constitutional synonyms

Answer: B. This distinction flows directly from Article 1 and is one of the most examinable definitions in the chapter.

Core MCQ 3. Article 2 is conceptually different from Article 3 because Article 2 deals with

- A. renaming existing States
- B. creation of legislative councils in States
- C. admission into the Union or establishment of new States not already part of the existing Union
- D. cession of Indian territory to a foreign State

Answer: C. Article 3 handles internal reorganisation of existing units; Article 2 is the external-admission clause.

Core MCQ 4. Which one of the following is NOT one of the express Article 3 operations?

- A. Increasing the area of a State
- B. Altering the name of a State
- C. Altering the boundaries of a State
- D. Ceding accepted Indian territory to a foreign State

Answer: D. Cession is outside Article 3 after Berubari; the other three are expressly listed in clauses (b), (e) and (d).

Core MCQ 5. Before an Article 3 bill is introduced in Parliament, what is constitutionally necessary?

- A. The prior recommendation of the President
- B. Prior ratification by at least half the States
- C. A joint sitting of both Houses
- D. Approval by the Supreme Court under Article 143

Answer: A. The bill cannot even be introduced without the President's recommendation.

Core MCQ 6. The legislature of the affected State, when consulted under Article 3, has

- A. a suspensive veto that can be overridden only in a joint sitting
- B. a right to express its views, but no veto over Parliament's final decision

- C. a binding veto unless the Supreme Court permits otherwise
- D. a co-equal decision-making role with Parliament

Answer: B. Article 3 requires consultation, not consent.

Core MCQ 7. Explanation I to Article 3 matters because it states that

- A. Union Territories are treated as States for all constitutional purposes
- B. States and UTs have identical representation in Rajya Sabha
- C. for clauses (a) to (e), 'State' includes a Union Territory, but not in the proviso requiring legislature-reference
- D. the President may abolish a State by ordinance

Answer: C. This is a close-option trap: inclusion applies to clauses (a)-(e), not fully to the proviso.

Core MCQ 8. Article 4 keeps reorganisation laws outside Article 368 because such laws are

- A. automatically approved by the Supreme Court
- B. valid only for five years unless renewed
- C. treated as Money Bills
- D. not deemed constitutional amendments for the purposes of Article 368

Answer: D. Article 4(2) expressly says so.

Core MCQ 9. The First Schedule is constitutionally important because it

- A. lists the States and Union Territories and their territorial extent
- B. contains the amendment procedure
- C. allocates Lok Sabha seats among constituencies
- D. lists the official languages of every State

Answer: A. Territorial and nomenclature changes must be reflected in the First Schedule.

Core MCQ 10. Which one of the following most accurately states Berubari Union (1960)?

- A. Any change in a State boundary requires prior consent of that State
- B. Cession of accepted Indian territory to a foreign State requires a constitutional amendment
- C. No Indian territory can ever be ceded under the Constitution
- D. Parliament cannot alter a State's name without Article 368

Answer: B. Berubari did not ban cession; it fixed the route - Article 368, not Article 3.

Core MCQ 11. The Supreme Court's 1969 boundary-settlement ruling is mainly remembered for holding that

- A. every international boundary issue must be referred under Article 143
- B. the Union cannot acquire State property
- C. boundary settlement or ascertainment without cession does not automatically require Article 368
- D. Article 3 and Article 4 are unconstitutional

Answer: C. The case distinguishes boundary implementation from surrender of sovereignty.

Core MCQ 12. Which constitutional amendment implemented the India-Bangladesh enclave exchange and related territorial adjustments?

- A. The Ninth Constitutional Amendment Act, 1960
- B. The Seventh Constitutional Amendment Act, 1956
- C. The Thirty-Sixth Constitutional Amendment Act, 1975
- D. The 100th Constitutional Amendment Act, 2015

Answer: D. The 100th Amendment gave effect to the Land Boundary Agreement and its protocol.

Core MCQ 13. Which sequence is correct for the linguistic-reorganisation debate?

- A. Dhar Commission -> JVP Committee -> Andhra State -> Fazl Ali / SRC -> States Reorganisation Act
- B. JVP Committee -> Dhar Commission -> Fazl Ali / SRC -> Andhra State -> Seventh Amendment

- C. Andhra State -> Dhar Commission -> JVP Committee -> Fazl Ali / SRC -> States Reorganisation Act
- D. Fazl Ali / SRC -> Dhar Commission -> JVP Committee -> Andhra State -> States Reorganisation Act

Answer: A. Chronology is often more important than slogans in this topic.

Core MCQ 14. What was the decisive political trigger for the creation of Andhra State in 1953?

- A. A Presidential reference under Article 143
- B. The prolonged fast and death of Potti Sriramulu
- C. The demand of the JVP Committee
- D. The Ninth Amendment Act

Answer: B. Andhra is the first major linguistic-State milestone.

Core MCQ 15. The States Reorganisation Act, 1956 together with the Seventh Amendment created

- A. 16 States and 3 Union Territories exactly as originally recommended by the SRC
- B. 28 States and 8 Union Territories
- C. 14 States and 6 Union Territories
- D. 15 States and 5 Union Territories

Answer: C. The government modified the SRC's exact recommendation, but the enacted 1956 outcome was 14 and 6.

Core MCQ 16. Which one of the following pairs is correctly matched?

- A. Nagaland - Statehood through the Ninth Amendment
- B. Goa - Statehood through the 100th Amendment
- C. Telangana - created by the Seventh Amendment
- D. Sikkim - full Statehood through the 36th Amendment after the brief associate-State experiment

Answer: D. Sikkim's path is constitutionally distinctive and therefore high-yield.

Core MCQ 17. The present practical count of Union Territories as of 21 Aug 2026 is

- A. 8
- B. 6
- C. 7
- D. 9

Answer: A. The count fell from 9 to 8 after the 2020 DNH-Daman and Diu merger.

Core MCQ 18. Which sequence of Statehood is correct?

- A. Arunachal Pradesh 1963; Nagaland 1972; Tripura 1987
- B. Nagaland 1963; Tripura 1972; Arunachal Pradesh 1987
- C. Tripura 1963; Arunachal Pradesh 1972; Nagaland 1987
- D. Nagaland, Tripura and Arunachal Pradesh all in 1972

Answer: B. This is the chronology behind Prelims 2025 Q52.

Core MCQ 19. Which one of the following correctly describes the 1950 map?

- A. Manipur and Tripura were Part B States
- B. Delhi was the sole Part D territory
- C. Part A had 9 units, Part B 9, Part C 10, and Andaman and Nicobar Islands alone formed Part D
- D. Hyderabad was a Part A State

Answer: C. Part C included Delhi, Himachal Pradesh, Manipur and Tripura; Hyderabad was Part B.

Core MCQ 20. Sikkim's constitutional sequence was

- A. full Statehood in 1974 followed by associate status in 1975
- B. UT status under the Seventh Amendment followed by Article 3 Statehood

- C. associate status under the 36th Amendment followed by Statehood under the 35th
- D. associate-State status through the 35th Amendment in 1974, followed by full Statehood through the 36th Amendment in 1975

Answer: D. Article 2A and the old Tenth Schedule marked the brief associate phase.

Core MCQ 21. With reference to the India-Bangladesh Land Boundary Agreement, which is correct?

- A. The 100th Amendment implemented an exchange in which India transferred 111 enclaves and received 51
- B. India transferred 51 enclaves and received 111 under the Ninth Amendment alone
- C. The First Schedule did not require amendment
- D. Only West Bengal's territorial entry was affected

Answer: A. Assam, West Bengal, Meghalaya and Tripura were affected.

Core MCQ 22. On the official record located through 21 August 2026, the correct J&K position is

- A. Statehood was automatically restored by the 2023 judgment
- B. J&K remains a UT with Legislature; restoration was directed and assured but had not been legally completed
- C. J&K and Ladakh have recombined into a State
- D. Ladakh is a State without Legislature

Answer: B. MHA's current official page continues to describe both as UTs.

Core MCQ 23. In the 2023 Article 370 judgment, the Supreme Court

- A. held every whole-State-to-UT conversion valid
- B. restored J&K Statehood with immediate effect
- C. upheld carving out Ladakh, treated State views as recommendatory, but did not finally decide the broader whole-State-to-UT issue because of the restoration assurance
- D. held Article 3 inapplicable to Union Territories

Answer: C. This qualified holding is safer than claiming a universal power was conclusively approved.

Core MCQ 24. Which criterion set is most defensible for evaluating a smaller-State demand?

- A. Population and language alone
- B. Political mobilisation alone
- C. Consent of the parent State alone
- D. Administrative access, fiscal viability, transition costs, resource division, minority safeguards, democratic support and inter-State effects

Answer: D. Statehood is a multi-dimensional governance decision.

Core MCQ 25. Which one of the following is correctly matched?

- A. United Provinces -> Uttar Pradesh, 1950
- B. Mysore -> Tamil Nadu, 1973
- C. Orissa -> Odisha, 2000
- D. Pondicherry -> Lakshadweep, 2006

Answer: A. Mysore became Karnataka; Orissa became Odisha in 2011; Pondicherry became Puducherry.

Core MCQ 26. The enacted result of the 1956 settlement was

- A. 16 States and 3 UTs
- B. 14 States and 6 UTs
- C. 28 States and 8 UTs
- D. 9 Part A and 9 Part B States

Answer: B. The Commission's proposed map and the enacted outcome must not be conflated.

Core MCQ 27. Which statement is correct about Ladakh's current demand?

- A. Statehood was granted by the PIB release of September 2025

- B. Sixth Schedule status automatically followed the 2025 regulations
- C. Official PIB releases recorded Statehood/Sixth-Schedule demands and continuing safeguard dialogue, but no territorial-status change
- D. Ladakh became a State through the 100th Amendment

Answer: C. Demand, dialogue and enacted law are distinct.

Core MCQ 28. Which statement best explains why Article 3 is often cited as proof of India's strong-Centre bias?

- A. States cannot legislate on the Concurrent List
- B. every State law needs Presidential approval
- C. Rajya Sabha seats are equal across States
- D. Parliament may reorganise States without needing their consent

Answer: D. Article 3 is among the clearest textual examples of centre-weighted federalism.

Core MCQ 29. Article 4 expressly enables a law under Articles 2 or 3 to amend which Schedules as necessary?

- A. The First and Fourth Schedules
- B. The Fifth and Sixth Schedules
- C. The Seventh and Eighth Schedules
- D. The Ninth and Tenth Schedules

Answer: A. The First Schedule records territorial units, while the Fourth allocates Rajya Sabha seats. Article 4 lets the same reorganisation law make both adjustments.

Core MCQ 30. Parliament materially amends an Article 3 Bill after the affected State legislature has sent its views. Which statement is correct?

- A. The Bill automatically lapses
- B. A fresh State-legislature reference is not constitutionally required for every amendment
- C. The State legislature acquires a veto over the amended clauses
- D. The Supreme Court must approve the amended Bill before passage

Answer: B. The Supreme Court's Article 3 jurisprudence treats the State's views as recommendatory and rejects an endless fresh-reference requirement for each parliamentary amendment.

Core MCQ 31. Historical polity texts list conquest among modes of territorial acquisition. A current answer should add that

- A. conquest remains unrestricted whenever Parliament passes an Article 3 law
- B. the President may validate acquisition by ordinance
- C. contemporary international law and the UN Charter sharply constrain acquisition by force
- D. acquired territory must immediately become a full State

Answer: C. The historical taxonomy needs a modern international-law qualification. Article 1(3)(c) recognises acquired territory but does not legalise aggressive force.

Core MCQ 32. State of West Bengal v. Union of India is relevant to this topic chiefly because it

- A. created Andhra State
- B. authorised foreign cession under Article 3
- C. made State consent compulsory
- D. supports the strong-Centre proposition that Indian States are not classical compact-sovereigns

Answer: D. The case concerned Union acquisition of State property. It is a limited structural analogy, not the controlling authority for cession or Article 3 procedure.

Core MCQ 33. Which statement correctly qualifies the familiar account of princely-State integration?

- A. The 552/549/three shorthand is a textbook convention; integration also used accession, merger, diplomacy and state unions
- B. Every princely State joined by an identical referendum
- C. Hyderabad, Junagadh and Kashmir all followed the same legal route
- D. Integration began only after the States Reorganisation Act, 1956

Answer: A. The shorthand is useful for recall but should not erase the diversity of instruments, politics and transitional arrangements.

Core MCQ 34. Which combination best reflects the Fazl Ali / States Reorganisation Commission approach?

- A. Language alone; one language must always produce one State
- B. Language plus unity/security, administrative-economic viability and welfare; one language-one State rejected
- C. No role for language under any condition
- D. State consent as a constitutional veto

Answer: B. Language was accepted as important but not exclusive. The Commission explicitly resisted a mechanical one-language-one-State rule.

Core MCQ 35. Which statehood-number sequence is correct?

- A. Haryana 16th, Nagaland 17th, Himachal Pradesh 18th
- B. Manipur 18th, Tripura 19th, Meghalaya 20th
- C. Gujarat 15th, Nagaland 16th, Haryana 17th
- D. Telangana 28th, Jharkhand 29th

Answer: C. The owner-grounded sequence begins Gujarat 15th, Nagaland 16th and Haryana 17th; Telangana became the 29th State in 2014.

Core MCQ 36. Which incorporation pair is correctly matched?

- A. Dadra and Nagar Haveli - Twelfth Amendment
- B. Goa, Daman and Diu - Fourteenth Amendment
- C. Puducherry - Tenth Amendment
- D. Puducherry - Fourteenth Amendment

Answer: D. Dadra and Nagar Haveli used the Tenth Amendment; Goa, Daman and Diu the Twelfth; Puducherry the Fourteenth.

Core MCQ 37. What was the direct count effect of the 2020 merger of Dadra and Nagar Haveli with Daman and Diu?

- A. The Union-Territory count fell from nine to eight, while the State count remained twenty-eight
- B. The State count rose to twenty-nine
- C. Ladakh became a State
- D. Delhi ceased to be a Union Territory

Answer: A. Two UTs became one combined UT on 26 January 2020; no State was created.

Core MCQ 38. Which is the most accurate statement of In Re Article 370 on territorial reorganisation?

- A. It finally upheld every possible conversion of a whole State into Union Territories
- B. It upheld Ladakh's creation under Article 3(a) read with Explanation I, while leaving the broader whole-State conversion question open because of the restoration assurance
- C. It restored J&K Statehood immediately
- D. It held State-legislature views binding under Article 3

Answer: B. The Court's holding was expressly qualified. It also reiterated that Article 3 views are recommendatory and called for Statehood restoration at the earliest and as soon as possible.

Core MCQ 39. Which topic-ownership statement is correct?

- A. Topic 05 owns every detail of Lieutenant-Governor administration
- B. Topic 22 owns the complete Article 3 chronology
- C. Topic 05 owns territorial architecture; Topic 25 owns Articles 239-241 administration; Topic 22 owns detailed Article 370 doctrine
- D. Topic boundaries are irrelevant because all three topics are identical

Answer: C. The firewall prevents territorial status from being confused with UT administration or the full special-provisions doctrine.

Core MCQ 40. Which is the safest current-status sentence for an examination answer dated 21 August 2026?

- A. J&K Statehood has certainly been restored because political leaders promised it
- B. Ladakh entered the Sixth Schedule automatically after the 2025 regulations
- C. Any committee discussion changes the First Schedule
- D. Official sources still describe J&K as a UT with Legislature and Ladakh as a UT without Legislature; no later status-changing notification or order was located

Answer: D. The rule is notification control: an assurance, demand, dialogue or regulation is not itself a territorial-status change.

Eight remedial MCQs for recurring traps

Remedial MCQ 41. A student writes that every change in a State's boundary requires Article 368 because the First Schedule changes. Which correction is most accurate?

- A. Article 4 itself allows First Schedule changes within an Article 3 law, so Article 368 is not normally needed
- B. The First Schedule can never be changed
- C. First Schedule changes are done only by executive notification
- D. Rajya Sabha approval replaces Parliament's ordinary law-making process

Answer: A. This remedial question targets the First-Schedule-amendment trap.

Remedial MCQ 42. A candidate uses Article 2 for the creation of Telangana. What is the best correction?

- A. Article 2 applies because Telangana had a separate movement
- B. Telangana was formed from an existing State, so Article 3 was the relevant territorial power
- C. Article 368 alone applies whenever a new State is created
- D. Article 1 alone authorises State creation

Answer: B. Political novelty does not make the territory external to the existing Union.

Remedial MCQ 43. A candidate writes the current count as 28 States and 9 UTs. The correction is

- A. 29 States and 8 UTs
- B. 27 States and 9 UTs
- C. 28 States and 8 UTs after the 2020 DNH-DD merger
- D. 28 States and 7 UTs

Answer: C. The State count stayed 28; the UT count fell by one.

Remedial MCQ 44. A student confuses Berubari with the Supreme Court's 1969 boundary-settlement principle. Which contrast is right?

- A. Berubari is a State-creation case; the 1969 principle is a renaming rule
- B. Berubari authorises cession by executive order; the 1969 principle bars every boundary agreement
- C. Berubari and the 1969 principle both say Article 3 is enough for cession
- D. Berubari deals with cession of accepted Indian territory; the 1969 principle deals with boundary settlement without such cession

Answer: D. This remedial item repairs the most common case-law mix-up in the topic.

Remedial MCQ 45. Which correction best answers the statement 'State consent is mandatory under Article 3'?

- A. Only the State legislature's views are sought; Parliament is not bound by them
- B. Consent is mandatory unless the State is bilingual
- C. Consent is mandatory only for name changes
- D. Consent is mandatory for Article 3 but not for Article 2

Answer: A. This is the central remedial trap of the chapter.

Remedial MCQ 46. A candidate writes that the 1956 settlement created 16 States and 3 UTs. The enacted result was

- A. 15 States and 7 UTs
- B. 14 States and 6 UTs
- C. 28 States and 8 UTs
- D. 9 Part A and 9 Part B States

Answer: B. The SRC recommendation and the enacted map were not identical.

Remedial MCQ 47. A candidate solves Prelims 2025 Q52 as "only two pairs" by treating the Nagaland statement as false. The correction is

- A. Pair I alone was correct
- B. The question was dropped
- C. The official UPSC key is C, all three pairs; Nagaland's settlement involved both the State of Nagaland Act and the Thirteenth Amendment
- D. Tripura was never a Part C unit

Answer: C. Official-key control overrides an incomplete one-statute elimination.

Remedial MCQ 48. Which is the best present-tense statement on J&K as of 21 Aug 2026?

- A. J&K has already regained full Statehood
- B. J&K has no legislature at all
- C. J&K and Ladakh have both become States
- D. J&K remains a Union Territory with a legislature; the official source sweep located no later dated notification or order completing Statehood restoration

Answer: D. The package deliberately uses the narrow, source-safe current-status formulation.

PYQS AND ANSWER PRACTICE

PYQ provenance audit

PYQ	Verification status	Treatment in this package
2025 Prelims GS-I Q52	Verbatim extracted from local official Set-A paper; official local Set-A key records C	Solved exactly with statement-level explanation
2018 Mains GS-I Q12	Exact owner text preserved; central routing ledger independently corroborates year, paper, question, directive, marks and word limit	Solved independently; no additional local official-paper file was found in this worktree
2022 Mains GS-I Q11	Exact owner text preserved; central routing ledger independently corroborates year, paper, question, directive, marks and word limit	Solved independently; no additional local official-paper file was found in this worktree

[LIMIT] Repository-wide searches of every 2018-2026 central PYQ routing and integration ledger found no additional directly relevant verified PYQ for this topic. Shared Delhi administration and detailed J&K Assembly-power questions remain with Topic 25 rather than being relabelled as Topic 05 owners.

PYQ 1. Prelims 2025, GS Paper I, Question 52 - verbatim official-paper verification

Consider the following pairs:

State	Description
I. Arunachal Pradesh	The capital is named after a fort, and the State has two National Parks
II. Nagaland	The State came into existence on the basis of a Constitutional Amendment Act
III. Tripura	Initially a Part 'C' State, it became a centrally administered territory with the reorganization of States in 1956 and later attained the status of a full-fledged State

How many of the above pairs are correctly matched?

(a) Only one (b) Only two (c) All the three (d) None

Official Set-A answer: (c) All the three.

- **Pair I:** Itanagar is named after Ita Fort; Arunachal Pradesh has Namdapha and Mouling National Parks.
- **Pair II:** The official key accepts the pair. Nagaland's settlement involved the State of

Nagaland Act, 1962 and the Constitution (Thirteenth Amendment) Act, 1962, which inserted Article 371A.

- **Pair III:** Tripura was a Part C unit, became a Union Territory in the 1956 arrangement and attained full Statehood in 1972.

Why this earns marks: it follows the official key, tests every pair independently, and explains why an ordinary Statehood Act and an accompanying constitutional amendment are not mutually exclusive.

PYQ 2. Mains 2018, GS Paper I, Question 12 - owner-verified exact text

Question: Discuss whether formation of new states in recent times is beneficial or not for the economy of India. (15 marks, 250 words)

Model solution

State formation can improve economic governance, but the gain follows from **institutional capacity and transition design**, not from small size by itself.

Potential benefits. A smaller unit can reduce administrative distance, reveal region-specific constraints and align budgets with local geography. **Chhattisgarh** obtained a dedicated policy arena for a large tribal-mineral region; **Uttarakhand** could focus on mountain roads, tourism and disaster risk; **Jharkhand** acquired a separate budgetary platform for mineral-rich but socially deprived districts; **Telangana** gained autonomous policy priority after 2014. These cases show how Statehood can improve problem recognition, accountability and capital allocation.

Costs and qualifications. New capitals, High Courts, cadres and departments create large fixed costs. Weak revenue capacity may increase grant dependence. Division of debt, employees, institutions, power and river water can generate prolonged disputes: the **Andhra Pradesh-Telangana** transition illustrates capital, asset and water frictions. Statehood also did not automatically remove **Jharkhand's political instability**, while Uttarakhand's development model remains constrained by fragile Himalayan ecology.

Thus, the relevant test is not “smaller equals richer” but whether reorganisation corrects neglect, improves access and is supported by viable finances, accountable institutions and a negotiated transition. New States can be economically beneficial, but Article 3 is a constitutional instrument, not a self-executing development policy.

Why this earns marks: the answer follows the economic directive, uses four named State examples, links each example to a mechanism, presents transition costs and ends with a conditional verdict.

PYQ 3. Mains 2022, GS Paper I, Question 11 - owner-verified exact text

Question: The political and administrative reorganization of states and territories has been a continuous ongoing process since the mid-nineteenth century. Discuss with examples. (15 marks, 250 words)

Model solution

India's political map has never been static; it has been repeatedly remade by colonial administration, national integration, linguistic accommodation, security settlements and developmental demands.

Colonial phase. The **1858 Crown takeover**, later provincial adjustments and the **1905 partition and 1911 reunification of Bengal** showed that boundaries could be administrative instruments with large political consequences. The Government of India Acts also altered provincial structures and degrees of autonomy.

Integration and transition. After 1947, accession and merger integrated princely States through different routes: **Junagadh, Hyderabad and Jammu and Kashmir** demonstrate plebiscitary, coercive and accession-under-invasion complexities. The 1950 **Part A/B/C/D** classification was therefore a transitional constitutional map, not a final settlement.

Linguistic and later reorganisation. Andhra (1953) made language unavoidable. The **Fazl Ali Commission**, while rejecting "one language-one State", led to the **States Reorganisation Act, 1956 and Seventh Amendment**, creating 14 States and 6 UTs. Later changes responded to multiple drivers: Maharashtra-Gujarat (1960), Nagaland (1963), Haryana (1966), North-Eastern Statehood (1972 and 1987), Sikkim (1975), the three States of 2000, Telangana (2014), J&K-Ladakh (2019) and the DNH-DD UT merger (2020).

The continuity lies in the recurring search for congruence between identity, administrative viability and national unity. Article 3 constitutionalised that adaptability, though democratic legitimacy still depends on consultation and fair transition.

Why this earns marks: it respects the mid-nineteenth-century time span, uses chronology as analysis, names examples across every phase and closes by identifying the continuing constitutional mechanism.

Six original solved Mains models

Original Mains model 1 - 10 marks: Distinguish the 'Territory of India' from the 'Union of India'. Why does the distinction matter?

Model answer. [CLAIM] The two expressions are related but not identical. [EVIDENCE] Article 1 and standard polity doctrine treat the Union of India as the States taken as federal members, whereas the Territory of India includes the territories of the States, the Union Territories, and such territories as may be acquired. [MECHANISM] This matters because States share constitutionally distributed powers with the Union, while Union Territories are centrally administered units under Articles 239-241 and acquired territories may await internal constitutional placement. [ANALYSIS] The distinction explains why a UT belongs to India without becoming a full federal partner, and why the First Schedule can list both States and UTs while still preserving their unequal constitutional status. [LIMIT] The distinction is structural, not emotional; one should not collapse sovereignty with federal membership. [VERDICT] The Union of India is the federation's membership core; the Territory of India is the wider constitutional space over which Indian sovereignty extends. **Why this earns marks:** it defines both expressions, links them to operative constitutional consequences, and avoids the common synonym trap.

Original Mains model 2 - 10 marks: Distinguish cession of Indian territory from settlement of a boundary dispute.

Model answer. [CLAIM] The Constitution treats cession and boundary settlement differently because only the former parts with accepted sovereign territory. [EVIDENCE] *Berubari Union* (1960) held that ceding accepted Indian territory to a foreign State cannot be done under Article 3 and requires constitutional amendment under Article 368. [MECHANISM] Cession changes the sovereign content of the Constitution's territorial ledger. By contrast, the Supreme Court's later 1969 ruling held that where the issue is ascertainment or implementation of an existing disputed boundary, and not transfer of accepted Indian territory, executive action need not be preceded by Article 368. [ANALYSIS] The test is not whether another country is involved, but whether India is surrendering what it accepts as its own territory. [LIMIT] A boundary-settlement label cannot disguise actual cession. [VERDICT] Cession changes sovereignty and needs amendment; boundary settlement clarifies or implements an existing line and need not. **Why this earns marks:** it identifies the controlling test, uses the safely verified case/principle and converts the distinction into a usable constitutional rule.

Original Mains model 3 - 15 marks: 'India is an indestructible Union of destructible States.' Examine with special reference to Article 3.

Model answer. [CLAIM] The phrase captures the asymmetry built into Indian federalism: the Union's continuity is entrenched, but State boundaries are not. [EVIDENCE] Article 1 names India a Union of States, while Article 3 empowers Parliament to form new States, increase or diminish their area, alter boundaries and alter names. [MECHANISM] An Article 3 bill requires the President's prior recommendation and reference to the affected State legislature for views, but those views are non-binding. Article 4 then keeps the reorganisation law outside Article 368, allowing ordinary-majority change. [ANALYSIS] This makes the Indian federation unlike a compact federation such as the United States, where State consent is structurally stronger. Yet the same flexibility enabled linguistic reorganisation, small-State creation and administrative adaptation without constitutional deadlock. [EVIDENCE] Andhra (1953), the 1956 settlement, and later creations such as Chhattisgarh, Jharkhand and Telangana show the practical utility of this power. [LIMIT] The design can create a democratic-consent deficit when major territorial change proceeds over sharp regional opposition. [VERDICT] India is indestructible because no State can claim a right to continued boundaries or secession; the States are destructible only in the constitutional sense that Parliament may reorganise them, not in the sense of lawless central arbitrariness. **Why this earns marks:** it ties the famous formula to the exact procedural mechanics of Article 3 and balances national flexibility with federal criticism.

Original Mains model 4 - 15 marks: Demands for smaller States should be decided through governance criteria, not identity alone. Discuss.

Model answer. [CLAIM] Identity can establish democratic urgency, but it cannot by itself prove that a new State will govern better. [EVIDENCE] Uttarakhand, Chhattisgarh and Jharkhand were created in 2000 to address distinct regional geographies and developmental claims; Telangana followed in 2014 after sustained regional mobilisation. [ANALYSIS] Smaller units may improve administrative access, policy focus and accountability. [QUALIFICATION] Statehood also creates new capital, cadre and institutional costs; weak revenue bases can deepen grant dependence; water, power, debt and assets can generate inter-State disputes; and a new regional majority may create a new minority. Jharkhand's institutional instability and Andhra-Telangana transition disputes show that Statehood is not a self-executing development policy. [CURRENT EVIDENCE] J&K restoration and Ladakh Statehood demands further require federal, security and minority safeguards; the official source sweep located no later status-changing notification or order through 21 August 2026. [VERDICT] Parliament should use Article 3 after transparent viability studies, broad consultation and negotiated transition, treating Statehood as a governance instrument rather than a reward for mobilisation. **Why this earns marks:** it uses four named examples, connects each claim to a mechanism, includes present debates and supplies operational decision criteria.

Original Mains model 5 - 20 marks: Linguistic reorganisation strengthened rather than weakened the Indian Union. Critically examine.

Model answer. [CLAIM] Linguistic reorganisation ultimately strengthened the Indian Union because it channelled identity into constitutional politics rather than leaving it outside the system, though not without centralising tensions and new sub-regional claims. [EVIDENCE] The initial hesitation of the Dhar Commission and the JVP Committee reflected a real fear that language-based States might embolden fragmentation. The creation of Andhra in 1953 after Potti Sriramulu's death showed that these demands could not simply be suppressed. [EVIDENCE] The Fazl Ali / States Reorganisation Commission accepted language as a major organising principle but rejected one language-one State and balanced it with viability, unity and welfare. The resulting States Reorganisation Act, 1956 and Seventh Amendment restructured India without dismantling its constitutional framework. [MECHANISM] By aligning administration with language in many cases, the Union reduced alienation, improved representational legitimacy and absorbed regional mobilisation into parliamentary and electoral channels. [ANALYSIS] Later developments - Nagaland, Meghalaya, Mizoram, Goa, Telangana and smaller-State formations in 2000 - show that Article 3 remained an accommodation device, not merely a linguistic tool. [LIMIT] Reorganisation did not end regionalism; it often displaced it into fresh internal claims for smaller units, capitals or autonomous protections. Nor can every present-day demand be justified by language alone. [VERDICT] Linguistic reorganisation did not dissolve the Union; it made the Union governable by recognising identity inside the Constitution. Its success, however, depended on combining language with viability, asymmetry and central constitutional control. **Why this earns marks:** it uses chronology as argument, gives both the fear and the outcome, and converts the 1956 settlement into a broader federalism verdict.

Original Mains model 6 - 20 marks: Does Article 3 reconcile national unity with democratic consent, or does it privilege unity at the expense of federal trust? Critically examine.

Model answer. [CLAIM] Article 3 reconciles unity and democracy only partially: it was designed to privilege the Union's continuity, and democratic consent enters the structure as consultation rather than as a State veto. [EVIDENCE] The President must recommend the bill and refer it to the affected State legislature for views, but Parliament is not bound by those views. Article 4 then keeps the resulting law outside Article 368, reinforcing flexibility. [MECHANISM] This makes Article 3 a nation-preserving safety valve. The Union can respond to secessionary pressures, viability problems, linguistic claims and administrative demands without constitutional paralysis. Andhra, the 1956 settlement, State creation in 2000 and Telangana in 2014 are evidence of this accommodative capacity. [ANALYSIS] Yet the same structure can weaken trust. If an affected State's legislature can only advise and not co-decide, consultation may appear symbolic in politically high-stakes reorganisations. The conversion of a former State into Union Territories in 2019 intensified this anxiety. [EVIDENCE] *State of West Bengal v Union of India* reinforces the strong-Centre reading, while the continuing democratic force of federalism is better captured by the political need for negotiated legitimacy and, in the broader constitutional order, by Bommai's basic-feature floor. [LIMIT] A compact-federation standard is not fully appropriate for India, whose Constitution deliberately rejected a treaty-union model. [VERDICT] Article 3 does not produce symmetrical federal consent; it privileges unity structurally, but can still generate democratic legitimacy when used through negotiation, transparency and accommodation rather than through bare majoritarian power. **Why this earns marks:** it neither romanticises consent nor demonises unity, and it uses the text, history and case law to produce a graded verdict rather than a slogan.